



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAR 12 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E-11088
(SECOND REVISION)

EXPIRATION DATE:
February 28, 1999

(FOR RENEWAL, SEE 49 CFR SECTION 107.109.)

1. GRANTEE: Advanced Materials Laboratories, Inc.
Forest Hills, New York
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain Division 6.1 and Division 1.4G materials listed in paragraph 6 in specially designed packaging as described in paragraph 7 without requiring poison labels, when marked with the word "Irritant", and packaged in packaging meeting Packing Group I performance standards. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 172.101, 172.400, 172.402.
5. BASIS. This exemption is based on Advanced Materials Laboratories, Inc.'s application dated December 30, 1996 submitted in accordance with 49 CFR 107.109.

Expired - NO RENEWAL
NOT Active

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Continuation of 2nd Rev. of DOT-E 11088

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Ammunition, tear producing	1.4G	UN0301	II
Tear Gas Candles	6.1	UN1700	II
Chloroacetophenone, Solid (CN)	6.1	UN1697	II
Chloroacetophenone, Liquid (CN)	6.1	UN1697	II
Tear Gas substances, N.O.S., Solid	6.1	UN1693	II
Tear Gas substances, N.O.S., Liquid	6.1	UN1693	II

7. PACKAGING AND SAFETY CONTROL MEASURES:a. PACKAGING:

- i Inner packagings are limited to 1 liter for liquids and 1 kilogram for solids.
 - Liquids must be packaged in metal can with screw cap closures.
 - Solids must be packaged in 6 mil poly bags sealed with twist ties.
- ii Inner packagings must be placed in a 3 mil thick poly bag, which is resistant to the lading. The bags must be packed, within the outer packagings, so as to prevent any movement that could cause the inner packagings to open. In addition, liquids must be packed with absorbent materials in sufficient quantity to absorb the total liquid content in the outer packaging.
- iii Outer packagings must be metal drums (1A2 or 1B2) with gas-tight gasket seal and bolt type ring. The completed package must meet the performance standard for Packing Group I and may not exceed 30 Kg gross weight.

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- b. MARKING and LABELING:
- i Each package must be plainly and durably marked with the word "Irritant" in one inch lettering, on the top and side.
 - ii POISON labels need not be displayed on packages prepared in accordance with this exemption. Each package shipped under this exemption that would require a POISON label must be marked "DOT-E 11088".
8. SPECIAL PROVISIONS. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
10. MODAL REQUIREMENTS. No modal-specific requirements are required by this exemption.
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C Section 5101 et seq:
- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - Registration required by 49 CFR 107.601 et seq., when applicable.
- No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.
12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

Ann Mazzullo
for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

3/12/97
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590. Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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